EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Applications nos. 37678/10 and 37789/10
Sozar SUBARI against Georgia
and Shio KOBIDZE against Georgia

The European Court of Human Rights (Fourth Section), sitting on 27 May 2014 as a Committee composed of:

Päivi Hirvelä, *President,*
Nona Tsotsoria,
Faris Vehabović, *judges,*
and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above applications lodged on 7 June 2010,
Having deliberated, decides as follows:

THE FACTS

1. The applicant in the first case, Mr Sozar Subari, was born in 1964 ("the first applicant"). He held the post of Human Rights Defender of Georgia at the material time of the events described below. The applicant in the second case, Mr Shio Kobidze, was born in 1971 ("the second applicant"). Both applicants are Georgian nationals, live in Tbilisi and were represented before the Court by Ms Lia Mukhashavria and Mr Nika Kvaratskhelia, lawyers at Human Rights Priority, a non-governmental organisation in Tbilisi.

2. The facts of the case, as submitted by the applicants, may be summarised as follows.

3. In the autumn of 2007, large-scale demonstrations led by a collection of opposition parties took place in Tbilisi, protesting against the President of Georgia and his Government. These demonstrations were initially peaceful but turned violent on 7 November 2007 when the police, using various harsh anti-riot tactics, dislodged the demonstrators from land adjoining the House of Parliament, preventing them from resuming their protests.

4. According to the applicants, they were beaten by officers of the riot police with rubber truncheons at around 2:00 p.m. on 7 November 2007 near the House of Parliament, during the dispersal of the peaceful manifestation. Whilst the second applicant immediately applied for a medical assistance, which was followed by a medical certificate confirming that he had received multiple bruising on his head, spine, chest and hands, the relevant case materials do not contain any similar medical documents with respect to the first applicant.

5. The first applicant asserted that the Ministry of the Interior had opened on 24 November 2007 a probe into the possible abuse of power by the police during the dispersal of the manifestation of 7 November 2007. However, the applicant failed to submit any decision related to those proceedings.

6. According to the materials available in the case files, for more than two years the applicants did not inquire before the relevant authorities about the progress of a criminal investigation into their alleged beatings by the riot police. It was only on 4 and 18 January 2010 that their lawyers filed requests with the Chief Public Prosecutor's Office, requesting either an update on the already existent or initiation of a new investigation.

7. According to the applicants, their requests of 4 and 18 January 2010 were left unanswered by the authorities, despite their two subsequent reminders filed with the prosecution authority in late April and early May 2010.

COMPLAINTS

8. Citing Articles 3, 8, 10, 11 and 13 of the Convention, the applicants complained that they had been subjected to ill-treatment during the dispersal of the demonstration by the police on 7 November 2007 and that the relevant domestic authorities had failed in their positive obligation to investigate the incidents in a timely and efficient manner.

THE LAW

9. Pursuant to Rule 42 § 1 of the Rules of Court, the Court decides to join the applications, given their common factual and legal background.

10. The Court notes that in the parts of the application forms reserved for statements relating to admissibility issues under Article 35 § 1 of the Convention, the applicants claimed that they should be exempted from the obligation to wait endlessly for the final outcome of the criminal investigation about which they had enquired for the first time in January

2010. However, the Court considers that, rather than addressing the question of whether or not the applicants have complied with the exhaustion requirement under Article 35 § 1 of the Convention, regard should be had to the relevant principles underlying the six-month rule.

11. The Court reiterates that the primary purpose of the six-month rule is to promote security of law and to ensure that cases raising issues under the Convention are dealt with within a reasonable time. One of the corollaries of the above-mentioned purpose is that an applicant claiming serious violations, such as those under Articles 2 and 3 of the Convention, must timely take the steps necessary for keeping track of the investigation's progress, or lack thereof, and to lodge their applications with due expedition once they are, or should have become, aware of the lack of any effective criminal investigation (see, amongst many other authorities, *Manukyan v. Georgia* (dec.), no. 53073/07, 9 October 2012; *Bayram and Yıldırım v. Turkey* (dec.), no. 38587/97, ECHR 2002-III; and *Finozhenok v. Russia* (dec.), 3025/06, 31 May 2011).

12. The Court observes that the present two cases are identical to the situation already examined by it in the case of *Akhvlediani and Others v. Georgia* ((dec.), no. 22026/10, 9 April 2013). Notably, alike the admissibility problem in the latter case, the applicants in the present two cases, purported victims of beating by the riot police on 7 November 2007, did not show the slightest interest in having the relevant facts elucidated through a criminal investigation at the domestic level for more than two years. They filed their inquiries about the investigation with the prosecution authority for the first time as late as 4 and 18 January 2010 (compare with *Akhvlediani and Others*, the decision cited above, § 25). Furthermore, the applicants did not explain to the Court why they had waited for so long before making inquiries about the investigation. Even if, as the first applicant asserted without though substantiating his assertion with documents, the authorities launched of their own motion a criminal probe into the police actions on 24 November 2007 (see paragraph 5 above), this fact could not have relieved the applicants of their own, individual obligation to undertake elementary steps and seek information from the relevant authorities about the investigation's progress or the lack thereof (compare with the identical factual situation in the above-cited decision of *Akhvlediani and Others*, §§ 25, 26 and 27, as well as with a similar situation in the case of *Manukyan*, the decision cited above, § 30; see also *Deari and Others v. "the former Yugoslav Republic of Macedonia"* (dec.), no. 54415/09, 6 March 2012; *Bayram and Yıldırım*, the decision cited above; and *Gasyak and Others v. Turkey*, no. 27872/03, § 58, 13 October 2009).

13. In the absence of any explanation in this respect, the Court considers, similarly to its findings in the case of *Akhvlediani and Others*, that the applicants in the instant two cases must also be considered to have

been aware of the lack of an effective criminal investigation into their alleged beating by the riot police on 7 November 2007 long before they petitioned the public prosecutor in January 2010. Even if they had not been aware of that fact for such a long period, this was necessarily due to their own negligent lack of initiative. The applicants' belated decision to file inquiries might have also been an attempt, unjustifiable in the circumstances of the present case, to revive the two-year-old events in order to become eligible under Article 35 § 1 of the Convention to bring their applications to the Court (compare with the Court's identical finding in the case of *Akhvlediani and Others*, the decision cited above, § 27, and also see *Finozhenok*, the decision cited above, and *Nasirkhaeva v. Russia* (dec.), no. 1721/07, 31 May 2011). However, this can hardly be considered to be compatible with the principle of legal certainty and the expectation that applicants act with due diligence and expedition at the domestic level.

14. In view of all the above, the Court considers that, irrespective of any time-limits that might be envisaged by the relevant national law for bringing criminal complaints about police abuses (see *Akhvlediani and Others*, cited above, § 27), the wholly unexplained inactivity of the applicants and indifference on their part towards the possible investigation for over two years fell foul of a major purpose of the six-month rule under Article 35 § 1 of the Convention (see also *Baybora and Others v. Cyprus* (dec.), no. 77116/01, 22 October 2002).

15. It follows that these applications have been introduced out of time and must be rejected in accordance with Article 35 §§ 1 and 4 of the Convention.

For these reasons, the Court unanimously

Decides to join the applications;

Declares the applications inadmissible.

Fatoş Aracı	Päivi Hirvelä
Deputy Registrar	President